MASTER SERVICES AGREEMENT MSA-SRS-2026-014
This Agreement is between Merrow County Emergency Management Agency (Owner) and Southeastern Recovery Services, LLC (Contractor) for debris removal after Tropical Storm Alder. Effective date: March 1, 2026.

1. Scope
Contractor shall collect, haul, reduce, and dispose of eligible storm debris within Merrow County at the Owner’s direction, under task orders issued by the Owner’s Debris Manager.

2. Order of Precedence
If contract documents conflict, the later executed written amendment controls for work performed on or after its effective date, then Pricing Schedule PS-A-2026-014, then this Agreement. Contractor procedures, including SRS-OPS-SOP-07, are not contract documents and never control over them.

3. Term
The initial term runs through February 28, 2027, unless ended earlier under Section 11.

4. Task Orders
No work is payable without a written task order naming the debris type, the work zone, and the approved disposal site.

5. Measurement and Payment
5.1 Payment is by unit rate in the Pricing Schedule in effect on the date of service.
5.2 Every load requires a load ticket showing ticket number, date, truck, debris type, load call percentage, one-way miles, disposal site, and monitor initials. A ticket without monitor initials is not payable until corrected by the monitor.
5.3 Payable volume equals the truck’s certified capacity multiplied by the monitor’s load call percentage.
5.4 Payable volume is rounded down to the nearest whole cubic yard for each ticket.
5.5 A load call under 50 percent is not payable unless the Contractor’s Project Director reviews it and the Owner concurs in writing.
5.6 A load containing both vegetative and construction and demolition debris shall be classified by the Contractor’s Project Director before billing. That classification may not be delegated or automated.
5.7 A physical ticket may be billed only once, however many times it is recorded.

6. Mileage
Mileage bands use one-way haul miles along the shortest legal truck route from the load site to the disposal site.

7. Truck Certification
Each truck must appear on the Truck Certification Register (SRS-TCR-2026) with a measured capacity before hauling. A ticket for a truck not on the register is not payable.

8. Invoicing
Contractor shall invoice monthly, with a ticket-level backup workbook, within 30 calendar days after month end. Late invoices may be rejected at the Owner’s discretion. The Contractor’s Project Director must approve each invoice before submission.

9. Retainage
The Owner may hold five percent retainage on each invoice until final acceptance of the work zone.

10. Records and Audit
Contractor shall keep all tickets, certifications, and invoices for seven years and produce them on request. Ticket corrections must preserve the original entry.

11. Termination
The Owner may terminate for convenience on 15 days written notice, and shall pay for work properly performed through the termination date.

12. Insurance
Contractor shall maintain commercial general liability of not less than two million dollars per occurrence, with the Owner named as additional insured, plus statutory workers compensation coverage.

13. Environmental Compliance
Contractor shall haul only to approved disposal sites, keep hazardous material out of debris loads, and report any release within 24 hours. Debris may not be stockpiled outside an approved temporary debris storage and reduction site.

14. Safety
Contractor shall maintain a written safety plan, flag crews for work in public rights of way, and report recordable incidents to the Debris Manager within one business day.

15. Subcontractors
Subcontractors require the Owner’s written consent. Contractor remains responsible for subcontractor tickets, certifications, and invoicing accuracy.

16. Disputes
The parties shall first attempt to resolve disputes between the Debris Manager and the Project Director. An unresolved dispute goes to the Owner’s Director within ten business days, then to non-binding mediation before any action at law.

17. Notices
Notices must be written and delivered to the addresses on the signature page. Email counts only when the recipient acknowledges receipt in writing.

18. Entire Agreement
This Agreement, its Pricing Schedule, and any written amendment signed by both parties are the entire agreement. No course of dealing changes these terms.

19. Severability
If a court finds a provision unenforceable, the remaining provisions stay in force, and the parties shall replace that provision with one that most nearly reflects the original intent.

20. Governing Law
This Agreement is governed by the law of the fictional State of Calder. Venue lies in the courts of Merrow County.

Signatures

For the Owner: D. Fenwick, Director, Merrow County Emergency Management Agency. For the Contractor: J. Tolliver, Project Director, Southeastern Recovery Services, LLC. All names are fictional.